

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #04	CCRB Case #: 201600628	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/26/2016 10:00 AM	Location of Incident: Merrick Boulevard and 107th Avenue	18 Mo. SOL 7/26/2017	Precinct: 103		
Date/Time CV Reported Tue, 01/26/2016 10:01 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/26/2016 10:01 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Gullo	29047	952816	103 PCT
2. POM Timothy Merrick	15349	952012	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Gullo	Force: PO Nicholas Gullo used physical force against § 87(2)(b)	A . Unfounded
B . POM Timothy Merrick	Abuse: PO Timothy Merrick frisked § 87(2)(b)	B . Exonerated
C . POM Nicholas Gullo	Abuse: PO Nicholas Gullo frisked § 87(2)(b)	C . Exonerated
D . POM Nicholas Gullo	Discourtesy: PO Nicholas Gullo spoke discourteously to § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on January 26, 2016.

On January 26, 2016, at approximately 9:15 AM, § 87(2)(b) was driving to her residence when she made a right turn on Merrick Blvd onto 107th Avenue where her vehicle was blocked by a truck making deliveries at the Jamaica Bus Depot. § 87(2)(b) stopped behind the truck, blocking the entrance to the bus depot, blocking traffic from passing her and creating a traffic jam that extended around the corner to Merrick Blvd.

A crowd of MTA employees gathered around the entrance of the depot. § 87(2)(b) honked the horn repeatedly and was approached by various MTA employees who asked her to move her vehicle to the side of the street but § 87(2)(b) refused, as she noted there were high snow banks on either side of the street from a heavy snowstorm on the preceding days.

PO Timothy Merrick and PO Nicholas Gullo of the 103rd Precinct responded within fifteen minutes to 911 calls reporting a dispute at the location with a woman brandishing a knife. PO Gullo approached the driver's side door and ordered § 87(2)(b) to step out of her vehicle approximately three times. PO Gullo allegedly grabbed § 87(2)(b) by her hood and pulled her out of the vehicle (**Allegation A**). PO Merrick and PO Gullo frisked § 87(2)(b) (**Allegation B and C**). The officers instructed § 87(2)(b) to provide her license and registration and sit back in her vehicle. PO Gullo went back to the RMP with her information. PO Merrick asked her to back her vehicle up ten inches or so and this allowed traffic to pass. PO Gullo returned with her information and handed her a summons for § 87(2)(b). She asked why she was getting a summons and not the truck driver and PO Gullo responded that she was lucky to have only gotten a summons as he could have "arrested her ass" (**Allegation D**).

Video Footage

Video footage was obtained from the Jamaica Bus Depot of this incident. While one of the depot's surveillance cameras shows § 87(2)(b)'s vehicle by the entrance of the bus depot and the RMP arriving, the interaction is too far in the distance to clearly discern physical actions (See Board Review, Video Footage).

Mediation, Civil and Criminal Histories

- Mediation was rejected by § 87(2)(b)
- No notice of claim has been filed by § 87(2)(b) with regards to this incident as of March 22, 2016.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Civilian and Officer CCRB Histories

- § 87(2)(b) has filed four previous complaints with the CCRB. § 87(2)(b)

§ 87(2)(b)

- PO Nicholas Gullo has been a member of service for three years. This is the first CCRB allegation against him.
- PO Timothy Merrick has been a member of service for four years. This is the first CCRB allegation against him.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A –Force: PO Nicholas Gullo used physical force against § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on January 28, 2016 (See Board Review, Civilian Statements). § 87(2)(b) alleged that when PO Gullo and PO Merrick arrived on the scene, PO Gullo commanded her to step out of the car. Prior to her stepping out, he asked her for her identification, which was on a keychain on the passenger's seat. She leaned over to reach for it and PO Gullo grabbed her by her hood and yanked her physically out of the car.

§ 87(2)(b) § 87(2)(b), was interviewed at § 87(2)(b) on February 5, 2016 (See Board Review, Witness Statements). § 87(2)(b) was in front of § 87(2)(b)'s vehicle when PO Gullo and PO Merrick arrived. § 87(2)(g) the officers requested § 87(2)(b) to step out repeatedly but noted that § 87(2)(b) exited the vehicle voluntarily without any officer making physical contact with her.

§ 87(2)(b) gave brief phone statements on February 8, 2016, and March 18, 2016. § 87(2)(b) § 87(2)(b)'s booth is located by the entrance to the depot. § 87(2)(g), stating that no officer physically removed § 87(2)(b) from the vehicle.

PO Nicholas Gullo was interviewed at the CCRB on March 15, 2016 (see Board Review, MOS Statements). PO Gullo stated that when he and PO Merrick arrived at the location, § 87(2)(b) was outside of her vehicle standing by the driver's side door. PO Gullo asked her to get back in her vehicle while the officers spoke to the MTA employees and put themselves between the MTA employees and § 87(2)(b). PO Gullo and PO Merrick approached § 87(2)(b)'s vehicle on the driver's side and asked her to step out. § 87(2)(b) was verbally combative and reluctant to step out, but PO Gullo instructed her to step out again. PO Gullo estimated he had to tell her to get out of the vehicle more than twice before she complied, however he did not have to physically remove her from the vehicle.

PO Timothy Merrick was interviewed at the CCRB on March 15, 2016 (see Board Review, MOS Statements) § 87(2)(g) PO Gullo did not forcibly remove § 87(2)(b) out of the vehicle and that she exited on her own will.

§ 87(2)(g) . Therefore it is recommended that **Allegation A be closed as unfounded.**

Allegation B- PO Timothy Merrick frisked § 87(2)(b)

Allegation C- PO Nicholas Gullo frisked § 87(2)(b)

It is undisputed by all accounts that PO Merrick and PO Gullo frisked § 87(2)(b) upon her exiting her vehicle based on reports they received that she had a knife.

§ 87(2)(b) admitted to arguing with MTA employees and an Access- A-ride bus driver. § 87(2)(b) denied having a knife or any weapon on her. § 87(2)(b) stated that PO Gullo and PO Merrick both frisked her, patting on her waist, legs, and arms. As they patted her down, PO Gullo asked her “Where’s the knife?”

§ 87(2)(b) provided conflicting testimony if he witnessed the frisk. However, he indicated that when § 87(2)(b) was requested out of her car, one of the officers told her that they had received reports that she brandished a knife.

§ 87(2)(b) did not see § 87(2)(b) with a knife but indicated he heard from an unknown employee that she had a screwdriver.

PO Merrick and PO Gullo stated that they responded to a call of a dispute and a disorderly person displaying a knife at the Jamaica Bus Depot. When they arrived they observed § 87(2)(b) standing by the driver’s side door of her vehicle, yelling and cursing at MTA employees. They were also told by three or four MTA employees who had called 911 that § 87(2)(b) was blocking the bus depot entrance, and brandishing a knife. § 87(2)(b) was at the time outside of her vehicle, irate, yelling and cursing at the employees. The officers did not observe anything in § 87(2)(b)’s hands. PO Merrick and PO Gullo frisked her to ensure she did not have a knife on her person. PO Merrick and PO Gullo observed a screw driver on the passenger side of the car.

The communications CD and Event records confirmed that PO Gullo and PO Merrick responded to reports that § 87(2)(b) was carrying a knife (See Board Review, NYPD Documents). In the third call, a caller identified as § 87(2)(b) states that § 87(2)(b) was threatening to cut someone and flashing what appeared to be a knife or a stick, and further stating that § 87(2)(b) was attempting to hit someone with her car.

According to *People v. Parson*, 94 AD3d 577(1st Dept. 2012) an officer has reasonable suspicion to stop and frisk a civilian when told by an identified witness that they are armed (See Board Review Case Law).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B** and **C** be closed as **exonerated**.

Allegation D- Discourtesy: PO Nicholas Gullo spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when PO Gullo handed her a summons and her driver's license and registration, and she questioned it, he responded he could have "arrested her ass."

§ 87(2)(b) who witnessed the officer giving § 87(2)(b) a summons, did not hear any threat of arrest or discourtesy directed at § 87(2)(b) in her interaction with the officers.

PO Gullo stated that while he told § 87(2)(b) she could have been arrested for her behavior, he never used the word "ass" or any other discourteous language for the duration of this interaction.

It was confirmed by all accounts that PO Merrick was seated in the patrol car at this time.

§ 87(2)(g)

§ 87(2)(b). Therefore it is recommended that **Allegation D** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date